Montgomery County District Court

Cause No. 2023-CV-0005

Kristi Moreno, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	11-13-23
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that Texas law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the occurrence in question. Plaintiff failed to keep a proper lookout, failed to yield right-of-way while traveling within the parking lot, and failed to exercise ordinary care for his or her own safety. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be rdeuced in proportion to Plaintiff's percentage of responsibility, and Plaintiff may recover nothing if that percentage exceeds fifty percent.

Second, the incident was proximately caused by the acts or omissions of persons or entities other than Defendant, for whom Defendant is not legally responsible, and Defendant requests that the trier of fact assign responsibility accordingly.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by failing to seek timely and appropriate treatment, and any recovery must be reduced by the amount of damages that reasonable mitigation would have avoided.